

Multiple Representation, Tenant Acknowledgement & Consent Disclosure

TENANT: (the "Tenant")

BROKERAGE: (the "Listing Brokerage")

REAL PROPERTY: (the "Property")

DEFINITIONS AND INTERPRETATIONS: For the purposes of this Acknowledgement: "Tenant" includes buyer, purchaser, and lessee or a prospective buyer, purchaser, and lessee "landlord" includes seller, vendor, and lessor or a prospective seller, vendor, and lessor, a and a "real estate board" includes a real estate association. A Lease shall be deemed to include includes any rental agreement, sub-lease or renewal of a lease. A purchase shall be deemed to include the entering into any agreement to exchange, or the obtaining of an option to purchase which is subsequently exercised. This Acknowledgement shall be read with all changes of gender or number required by the context.


(Tenant's Initials)

MULTIPLE REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into Landlord representation agreements with landlords who may be interested in leasing a property that is of interest to the Tenant and requires the Tenant's consent to represent more than one client in the same trade. In the event that the Brokerage has entered into or enters into a landlord representation agreement with a prospective landlord of a property of interest to the Tenant, the Brokerage requires the Tenant's written consent to represent both the Tenant and the landlord for the transaction at the earliest practicable opportunity and in all cases prior to any offer to lease being submitted or conveyed.

The Tenant understands and acknowledges that the Brokerage must be impartial when representing both the Tenant and the landlord and equally protect the interests of the Tenant and landlord. The Tenant understands and acknowledges that when representing both the Tenant and the landlord, the Brokerage shall have a duty of full disclosure to both the Tenant and landlord.

However, the Tenant further understands and acknowledges that the Brokerage shall not disclose:

- that the Tenant may or will pay more than the listed price, unless otherwise instructed in writing by the Tenant;
- that the landlord may or will accept less than the offered price, unless otherwise instructed in writing by the landlord;
- the motivation of or personal information about the Tenant or landlord, unless otherwise instructed in writing by the party to which the information applies or unless failure to disclose would constitute fraudulent, unlawful or unethical practice;
- the price the Tenant should offer or the price the landlord should accept; and
- the Brokerage shall not disclose to the landlord the terms of any other offer by the Tenant.

However, it is understood that factual market information about comparable properties and information known to the Listing Brokerage concerning potential uses for the property will be disclosed to both landlord and Tenant to assist them to come to their own conclusions.

The Brokerage shall not be appointed or authorized to be agent for either the landlord or the Tenant for the purpose of giving and receiving notices where the Brokerage represents both the Tenant and the landlord (multiple representation).


(Tenant's Initials)

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into landlord representation agreements with landlords who may have a property that is of interest to the Tenant where the designated representative represents both the Tenant and the landlord and requires the Tenant's written consent to represent more than one client in the same trade. In the event of multiple representation and designated representation, the Brokerage duty of disclosure to both the Tenant and the landlord client is as more particularly set out in the agreement with the respective Tenant or landlord.


(Tenant's Initials)

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION AND BROKERAGE REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into landlord representation agreements with landlords who may be interested in leasing a property that is of interest to the Tenant where the designated representative represents the Tenant and the Brokerage represents the landlord or where the Brokerage represents the Tenant and the designated representative represents the landlord and requires the Tenant's written consent to represent more than one client in the same trade. In the event of multiple representation and designated representation and brokerage representation, the Brokerage duty of disclosure to both the Tenant and the landlord client is as more particularly set out in the agreement with the respective Tenant or landlord.

COMMENTS:

CONSENT FOR MULTIPLE REPRESENTATION

With their initials the Tenant consents to the Brokerage or designated representative representing more than one client in the same transaction.


INITIALS OF TENANT(S)

.....
(Authorized to bind the Listing Brokerage) (Seal) (Date) (Name of Person Signing)

THIS MULTIPLE REPRESENTATION, TENANT ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM HAS BEEN READ AND FULLY UNDERSTOOD BY ME, I ACCEPT THE TERMS OF THIS MULTIPLE REPRESENTATION, TENANT ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM.

SIGNED, SEALED AND DELIVERED I have hereunto set my hand and seal:

.....
(Signature of Tenant) (Seal) (Date)

.....
(Signature of Tenant) (Seal) (Date)